



LEAVE BENEFITS FOR FEMALE EMPLOYEES WHO ARE VICTIMS OF VIOLENCE

Policy No. 03 - 2005

PURPOSE:

To establish a policy for the granting of leave benefits to a woman employee who is a victim of violence to ensure her personal safety and security.

INTRODUCTION:

The Implementing Rules and Regulations of Republic Act No. 9262 otherwise known as the "Anti-Violence Against Women and their Children of 2004" requires all employers either in the private or public sectors to grant leave benefits to women employees who are victims of violence in order to ensure that women and their children have effective access to justice and to services and programs legally due them under the Act.

The following acts constitute the crime of violence against women and their children:

1. Causing physical harm to the woman and her child;
2. Threatening to cause the woman and her child physical harm;
3. Attempting to cause the woman and her child physical harm;
4. Placing the woman or her child in fear of imminent physical harm
5. Attempting to compel or compelling the woman or her child to engage in conduct which the woman or her child has the right to desist from or to desist from conduct the woman or her child has the right to engage in, or attempting to restrict or restricting the woman's or her child's freedom of movement or conduct by force or by threat of force, physical or other harm or threat of physical or other harm, or intimidation directed against the woman or her child. This shall include, but not limited to, the following acts committed with the purpose or effect of controlling or restricting the woman's or her child's movement or conduct:
 - a) Threatening to deprive or actually depriving the woman or her child of custody or access to her family;
 - b) Depriving or threatening to deprive the woman or her children of financial support legally due her or her family, or deliberately providing the woman's children insufficient financial support;
 - c) Depriving or threatening to deprive the woman or her child of a legal right;
 - d) Preventing the woman in engaging in any legitimate profession, occupation, business activity or controlling the victim's own money or properties, or solely controlling the conjugal or common money, or properties.
6. Inflicting or threatening to inflict physical harm on oneself for the purpose of controlling her actions or decisions;
7. Causing or attempting to cause the woman or her child to engage in any sexual activity which does not constitute rape, by force or threat of force,



LEAVE BENEFITS FOR FEMALE EMPLOYEES WHO ARE VICTIMS OF VIOLENCE

Policy No. 03 - 2005

- physical harm, or through intimidation directed against the woman or her child or her immediate family.
8. Engaging in purposeful, knowing, or reckless conduct, personally or through another, that alarms or causes substantial emotional or psychological distress to the woman or her child. This shall include, but not limited to the following acts:
 - a) Stalking or following the woman or her child in public or private places;
 - b) Peering the window or lingering outside the residence of the woman or her child;
 - c) Entering or remaining in the dwelling or on the property of the woman or her child against her will;
 - d) Destroying the property and personal belongings or inflicting harm to animals or pets of the woman or her child;
 - e) Engaging in any form of harassment or violence.
 9. Causing mental or emotional anguish, public ridicule or humiliation to the woman or her child, including but not limited to, repeated verbal and emotional abuse, and denial of financial support or custody of minor children or denial of access to the woman's child/children.

POLICIES:

1. A victim of Violence Against Women and their Children (VAWC) who is employed with the cooperative shall be entitled to a paid leave up to ten (10) days in addition to other paid leaves under the Labor Code and Civil Service Rules and Regulations and other existing laws and cooperative policies, extendible when the necessity arises.
2. The availment of the ten-day leave shall be at the option of the woman-employee, which shall cover the days that she has to attend to medical and legal concerns.
3. Leaves not availed of are non-cumulative and not convertible to cash.

IMPLEMENTATION:

The General Manager is responsible in the implementation of this Policy.

EFFECTIVITY:

This Policy shall take effect upon the approval of the Board of Directors.

NORMA T. PARADO
Secretary

ZALDY B. GUILENG
President

Approved per Board Resolution No. 115-2005 dated October 7, 2005

POLICY No. 03-2005

PURPOSE:

To establish a policy for the granting of leave benefits to a woman employee who is a victim of violence to ensure her personal safety and security.

INTRODUCTION:

The Implementing Rules and Regulations of Republic Act No. 9262 otherwise known as the "Anti-Violence Against Women and Their Children Act of 2004" explicitly requires all employers either in the private or public sectors to grant leave benefits to women employee/s who are victims of violence in order to ensure that women and their children have effective access to justice and to services and programs legally due them under the Act.

The following acts constitute the crime of violence against women and their children:

1. Causing physical harm to the woman or her child;
2. Threatening to cause the woman or her child physical harm;
3. Attempting to cause the woman or her child physical harm;
4. Placing the woman or her child in fear of imminent physical harm;
5. Attempting to compel or compelling the woman or her child to engage in conduct which the woman or child has the right to desist from or to desist from conduct which the woman or her child has the right to engage in, or attempting to restrict or restricting the woman's or her child's freedom of movement or conduct by force or by threat of force, physical or other harm or threat of physical or other harm, or intimidation directed against the woman or her child. This shall include, but not limited to, the following acts committed with the purpose or effect of controlling or restricting the woman's or her child's movement or conduct:
 - a) Threatening to deprive or actually depriving the woman or her child of custody or access to her/his family;
 - b) Depriving or threatening to deprive the woman or her children of financial support legally due her or her family, or deliberately providing the woman's children insufficient financial support;
 - c) Depriving or threatening to deprive the woman or her child of a legal right;
 - d) Preventing the woman in engaging in any legitimate profession, occupation, business or activity, or controlling the victim's own money or properties, or solely controlling the conjugal or common money, or properties.
- 6.- Inflicting or threatening to inflict physical harm on oneself for the purpose of controlling her actions or decisions;
7. Causing or attempting to cause the woman or her child to engage in any sexual activity which does not constitute rape, by force or threat of force, physical harm, or through intimidation directed against the woman or her child or her/his immediate family;

8. Engaging in purposeful, knowing, or reckless conduct, personally or through another, that alarms or causes substantial emotional or psychological distress to the woman or her child. This shall include, but not limited to the following acts:
 - a) Stalking or following the woman or her child in public or private places;
 - b) Peering in the window or lingering outside the residence of the woman or her child;
 - c) Entering or remaining in the dwelling or on the property of the woman or her child against her/his will;
 - d) Destroying the property and personal belongings or inflicting harm to animals or pets of the woman or her child;
 - e) Engaging in any form of harassment or violence.
9. Causing mental or emotional anguish, public ridicule or humiliation to the woman or her child, including, but not limited to, repeated verbal and emotional abuse, and denial of financial support or custody of minor children or denial of access to the woman's child/children.

POLICIES:

1. A victim of Violence Against Women and Their Children (VAWC) who is employed with the cooperative shall be entitled to a paid leave up to ten (10) days in addition to other paid leaves under the Labor Code and Civil Service Rules and Regulations and other existing laws and cooperative policies, extendible when the necessity arises.
2. The availment of the ten-day leave shall be at the option of the woman employee, which shall cover the days that she has to attend to medical and legal concerns.
3. Leaves not availed of are non-cumulative and not convertible to cash.

IMPLEMENTATION:

The General Manager is responsible in the implementation of this policy.

EFFECTIVITY:

This policy shall take effect upon the approval of the Board of Directors.


NORMA T. PARADO
Secretary of the Board


ZALDY B. GUILENG
Board President

Approved per Board Resolution No. 115-2005 dated October 7, 2005.